

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY,

FLORIDA CASE NO.: [25-CA-10255]

DIVISION: [B]

CHRISTOPHER HANSON, individually and as attorney for himself and attorney/next friend for his minor children [8 years old] and [6 years old], Plaintiffs

v.

THIRTEENTH JUDICIAL CIRCUIT COURT, et al., Defendants

VERIFIED MOTION TO VACATE, FOR CLARIFICATION, REHEARING, AND ENTRY OF AN ORDER CONSISTENT WITH THE RELIEF REQUESTED IN THE AMENDED PETITION, AND ABSENT IMMEDIATE AND SATISFACTORY RELIEF OR EXPLANATION, DISQUALIFICATION OF JUDGE FRAYMAN FROM THESE PROCEEDINGS

INTRODUCTION

1. Plaintiff submits that the Court misapplied Rule 2.420(l), overlooked the "integrated" nature of the records sought, introduced intentional and unlawful delays, and defied constitutional transparency requirements. All of the Court's actions align with defendants continuing self-preservation mode involving delays, distraction, and burdening the undersigned.
2. Based on the facts, law, and argument herein, Plaintiffs request the Court vacate specific portions of the January 13, 2026, Alternative Writ of Mandamus that dismissed claims for "administrative records" and "declaratory relief" without notice or hearing, for entry of an order consider with Plaintiff's Motion for Immediate Writ (Docket #37), and absent a compelling clarification for the Court's actions based in law and fact and/or satisfactory relief, disqualification of Judge Frayman.
3. The Court's sua sponte assertion, analysis, and determinations on defenses not raised by the defendants, all while literally silencing plaintiff from making a record, raise serious bias and due process concerns.
4. Judge Frayman's sua sponte actions benefitting defendants appears to continue the same very problematic theme throughout the underlying litigation and this public records request process – insider protectionism that's above any obligation to truth or justice.

5. Plaintiff is entitled to a fair process. The rules require it be expedited. Plaintiff requests a hearing on these issues for the Court's earliest available time, and the Court's attention in expediting this process.

A. Background on underlying family law case and prior, more deferential language in arguments requests for relief:

6. Plaintiff recognizes that Judge Frayman does not have information about Plaintiff's core litigation in the family law case and the nightmare that ensued for his family. Plaintiff is willing to make any or all of the evidence in the family law case available to Judge Frayman if relevant to his determinations although will provide a certified statement here as party and officer of the Court.
7. The sole conflict in the family law case in May of 2024 was Plaintiff's insistence on financial discovery related to Wife's income she kept in a separate account and openly concealed from Plaintiff during and after the marriage.
8. Initially, Judge Ayers and Attorney Scott Davis and now others obstructed that simple issue from resolution and now have prolonged unnecessary litigation for nearly 2 years. It's caused significant financial damage to Plaintiff and damaged the overall well being of the family.
9. The obstruction gradually became more about covering up for the attorney and judicial misconduct readily observable in the record. However, the damage to plaintiff and his family is all the same.

B. Plaintiff continued to push for the most efficient path to a fair result, consistent with my obligations as an attorney under the Florida Bar.

10. The Truth is most highest responsibility as an attorney, and I have a duty to speak it, especially when the powerful people around me want it silenced.
11. Plaintiff did not want to spend years of his life in this incredibly stressful situation as evidenced in his pleadings and the good faith he showed in waiving any attorney client privilege in the underlying family law case. He simply wanted the fairness and peace of mind the Florida Family law system and its framers intended.
12. Plaintiff wanted this issue resolved back in 2024, and didn't even want to handle it himself, hiring 2 separate attorneys.
13. Plaintiff's initial comments about the corruption and misconduct he observed were much more deferential in terms of questioning irregularities, inconsistencies, and intent, suggesting that the Court proceed fairly.
14. After over a year of having multiple judicial officials and institutions ignore these concerns, Plaintiff has become more direct and simply wants to put the facts out there for anyone with jurisdiction and authority over the case.

C. Impact on Public Confidence in the Judiciary given delays and Court's unnoticed, sua sponte actions:

15. Judge Frayman's actions in this matter are all consistent with an intent to shield the 13th Circuit from accountability although Plaintiffs are open to any alternative explanations the Court may offer, especially in light of the additional information provided above. .
16. Plaintiff's unrefuted allegations demonstrate a long and concerning pattern of judicial misconduct and a cover up attempts that continue this pattern of expanding judicial misconduct and insider protectionism. The most concerning aspect of all related cases (described at Docket #41), is the consistency with which judicial officials dismiss and provide cover for allegations against fellow insiders. The financial barriers and finding a lawyer willing to expose systemic corruption and judicial misconduct almost universally prevent the type of litigation at issue before this Court.
17. The constitutional mandate on Courts for transparency cannot be ignored in these facts where credible allegations of judicial misconduct exist.
18. Given the obstacles the judiciary has placed to fairness and transparency, it would be impossible for any non-lawyer litigant to get a fair result in Plaintiff's position.
19. No attorneys are willing to take Plaintiff's claim on to oppose the Circuit, the Florida bar, and the JQC, limiting citizen's access to justice given the culture of fear and insider protectionism.
20. It is concerning to consider how often this happens in other cases if the Courts continue to ignore the simple, undisputed facts in front of them in this one.

I. FACTS

21. Plaintiff, a licensed attorney representing himself and his minor children, initiated this mandamus action to enforce fundamental constitutional rights to public records under Article I, Section 24 of the Florida Constitution. Plaintiff's continuing efforts in the present action and related ones illuminate obvious and severe misconduct the 13th Circuit is working desperately to conceal.
22. Judge Frayman failed to justify the facts and law that support his decision that provides defendant significant assistance, protection and support
23. There are 15 different actions and barriers to constitutional transparency that Judge Frayman's handling of the case already created, all in favor of defendants and in direct conflict with relevant law, constitutional mandates and the basic principles of our judicial system.

A. Procedural Actions Benefitting Defendants and causing delays with no basis in law or fact provided.

Resetting the Responsive Pleading Clock:

24. Despite the Defendants being served with the Amended Petition on December 19, 2025, and filing a formal response on January 8, 2026, the Court's order grants them a fresh 20-day window to respond under Rule 1.140 (offering no factual or legal justification for the "do-over" gifted to the defendants. Defendants didn't even have to allege they needed it.
25. Converting an Expedited Proceeding into a "Slow-Track" Civil Track: While Rule 2.420(l) mandates "expedited review," the Court's order defers the scheduling of an evidentiary hearing until after a future Case Management Conference, effectively stalling the summary nature of the writ.
26. Granting a "Second Bite at the Apple": By resetting deadlines after the Defendants had already failed to refute specific factual allegations of "document dumping" in their January 8 response, the Court provided the defendants an unauthorized opportunity to formulate new theories on a lawsuit Judge Frayman already addressed to limit.
27. Deferring Immediate Production Following a Prima Facie Finding: The Court correctly identified a prima facie case for relief but failed to order the immediate production of any records, despite the presumption in favor of expedited transparency and unrefuted evidence of defendants' misconduct.

B. Sua Sponte Advocacy and Due Process Violations

28. Unilateral Narrowing of Claims Without Notice: The Court sua sponte struck Plaintiff's claims for "administrative records" and "declaratory relief" during the initial assessment phase without providing an opportunity for Plaintiff to present arguments.
29. Acting as Supplemental Defense Counsel: The Court invoked the jurisdictional bifurcation of "administrative" versus "court" records under Rule 2.420(l)—a specific defense the Defendants themselves failed to raise or prioritize in their January 8 opposition.
30. Silencing the Plaintiff at the CMC: During the January 13 conference, the Court declined to hear oral arguments or allow Plaintiff to establish a record, proceeding instead based on its own independent research and findings.
31. Constructing a "Black Box" via Rule 2.420(l): By labeling the individual judges' communications as "administrative" sua sponte, the Court effectively immunized them from discovery at the trial level and diverted core evidence of "clubhouse corruption" to a delayed appellate track.

C. Inconsistency with Constitutional Transparency and Openness

32. Reversing the Constitutional Burden of Proof: Under the "strong presumption of public access" established by the Florida Supreme Court, the burden is on the custodian to justify closure; however, the Court's order forces Plaintiff to justify entitlement (again), and now after the judicial assist tipped what to assert and argue on these second change responsive pleading.
33. Ignoring the "Integrated Record" Exception for Video Evidence: The Court dismissed claims regarding the April 4, 2025, hearing video as "administrative" without considering that Judge Ayers integrated the video into the judicial record by offering it on the record to resolve a dispute about her integrity.
34. Permitting a "Bait and Switch" on Confidentiality: The Court's actions allow the 13th Circuit to continue withholding correspondence they confirmed exists, but have actively and intentionally concealed.
35. Failing to Address Unrefuted Misconduct Admissions: The Court ignored the legal significance of the Defendants' silence regarding specific "document dumping" accusations, which constitutes a tacit admission of bad faith under Fla. Stat. § 90.803(18)(b).

D. Direct Evidence of Bias and Impairment of Fairness

36. Derogatory Labeling of Plaintiff's Work: In its order, the Court gratuitously characterized Plaintiff's Amended Complaint as "inartful," a subjective comment that Plaintiff asserts demonstrates bias against his pursuit of transparency. Judge Frayman is asked to provide clarification on what about Plaintiff's case or work warranted the "inartful" label.
37. Mislabeling Plaintiff's Legal Capacity: Despite Plaintiff appearing in his official capacity as attorney of record for himself and his children, the Court's order repeatedly refers to him as "self-represented" or "pro se," diminishing his professional status on the record.
38. Favoritism Disguised as Procedure: The Court's actions—filling in unasserted defense theories, granting extensions past due dates, with a do over for another bite at the apple—reflect motive based in the insider protectionism culture absent some other explanation from the Court.

III. MOTION TO VACATE AND REHEAR: JURISDICTIONAL ERRORS UNDER RULE 2.420(I)

39. The Court's sua sponte actions at the January 13, 2026 Case Management Conference raise serious due process concerns. Florida law requires that parties be given notice and an opportunity to be heard before adverse rulings are made, especially when constitutional rights and presumptions are implicated. See *Universal Property Casualty Insurance Co. v. Andre*, 4D22-2680, 2024 WL 130123 (Fla. 4th

DCA Jan. 17, 2024) (reversing sua sponte default entered without opportunity to be heard).

40. Here, the Court sua sponte raised defenses not pleaded by Defendants, including the jurisdictional bifurcation of "administrative" versus "court" records under Rule 2.420(l).
41. The Court went beyond simply refusing Plaintiff time for a response – which is in itself violates the fundamental fairness and adversarial principles underlying Florida's judicial system. See *Jones v. Sayer*, 313 So. 3d 126 (Fla. 4th DCA 2021) (trial court may not sua sponte dismiss claims based on affirmative defenses not raised by parties).
42. Here, the Court silenced Plaintiff to prevent a record, actually muting Plaintiff during the hearing.
43. Judge Frayman's actions already tilt the case in favor of Defendants in a manner difficult or even impossible to remedy.
44. For these reasons, the Court's jurisdictional rulings and procedural orders should be vacated and reheard with full opportunity for Plaintiff to respond as the Court should immediately proceed to order production of, at a minimum, all court records which would obviously include the critical April 4, 2025 hearing video and documents relating to the December 13, 2024 and January 9, 2025 hearings involving serious due process violations.

IV. THE COURT'S FAILURE TO REQUIRE ANYTHING OF DEFENDANTS NOT ALREADY DUE JANUARY 8, 2026 DESPITE "PRIMA FACIE" CASE AND LACK OF ANY FACTUAL DISPUTE OR LEGAL EXEMPTION

45. In contrast to the above on the Court's sua sponte actions benefitting defendants, Judge Frayman made no findings on plaintiff's prima facie cases, and placed no burden on the defendants to provide any records.
46. Despite the presumption in plaintiff's favor, prima facie cases consistent with the statute, and unrefuted facts demonstrating severe defendant misconduct, the Court acted only in favor of defendants' interests, refusing to require anything of defendants or allow Plaintiff anything against Defendants' interests.
47. Under Florida mandamus procedure, once a plaintiff establishes a prima facie case showing a clear legal right to the records, a ministerial duty of the defendants to produce those records, and the absence of any adequate remedy at law, the court is generally required to issue an alternative writ or order compelling production without delay. The burden then shifts to the defendants to demonstrate a valid legal exemption or justification for withholding the records. See Fla. R. Civ. P. 1.630(d)(2); *Media Gen. Convergence, Inc. v. Chief Judge of the Thirteenth Jud. Cir.*, 840 So. 2d 1008, 1013 (Fla. 2003); *Grant Stern v. DeSantis*, 1D22-1574 (Fla. 1st DCA 2023).

48. In this case, Plaintiff met the prima facie burden by showing entitlement to judicial records under Article I, Section 24 of the Florida Constitution and Rule 2.420, supported by unrefuted factual allegations of concealment and bad faith. Defendants failed to meet their burden of demonstrating any valid exemption or justification for withholding the records.
49. Accordingly, the anticipated order under Florida law would be an immediate alternative writ or order compelling production of the requested records, including the critical April 4, 2025 hearing video and communications related to the December 13, 2024 and January 9, 2025 hearings. Delays or deferrals to a future case management conference or additional response periods contradict the expedited review mandate and the constitutional presumption favoring disclosure.
50. The Court's failure to do so not only violates procedural due process but also undermines public confidence in the judiciary and perpetuates the concealment of judicial misconduct only prolonging the damage and pain to the family at the center of this petition.
51. This Court moving the goalposts for Judicial accountability farther in the distance to benefit another Court already actively working to conceal the records is an interest of great public concern.
52. Moreover, the Court improperly shifted the burden onto Plaintiff to justify entitlement to records despite the strong constitutional presumption of public access under Article I, Section 24 of the Florida Constitution (irrespective of the underlying facts raising serious concerns about insider protectionism in the Court system).
53. The burden is on the custodian to justify closure, not on the requester to prove entitlement. See *Media Gen. Convergence, Inc. v. Chief Judge of the Thirteenth Jud. Cir.*, 840 So. 2d 1008, 1013 (Fla. 2003).
54. The Court gave no consideration to and refused Plaintiff the opportunity to suggest consideration of why the 13th Circuit is fighting so hard against transparency especially related to the video that a sitting Judge placed in the proceedings during a hearing.
55. Plaintiff offers a reasonable, unrefuted explanation, the Court is unwilling to consider the simple truth in front it.
56. Judge Frayman cites no facts or law in his order that might justify such a procedural gift for the defendants, that directly defies the constitutional presumption of public access to judicial records and Rule 2.420's "expedited process for these actions.
57. In fact, there are no facts (or even factual disputes) in the record that could lead to such a conclusion.
58. The materials Plaintiff and Defendant have filed to date show a long, undisputed history of misconduct involving Judge Ayers' bias and misconduct against plaintiff, with various other judicial officials committing misconduct independently, and in furtherance of attempted cover-ups for Ayers.

59. What other facts are there on which Judge Frayman relied in gifting a do over with an easier assignment (after cutting the claims himself) to the defendants? What basis is there to accept any facts other than those Plaintiff alleged when all the defendants and their counsel failed to refute any of them?
60. Given that the additional time and right to a do over with no obligation to produce anything is inconsistent with the facts and the law, what could Judge Frayman's motivation or basis be, other than precisely the same judicial insider protectionism referenced throughout Plaintiff's filings in this matter.
61. Plaintiff drafted an entire article on the precise problem Judge Frayman's January 13, 2026 hearing conduct and order illuminate – The Florida Legal System's failures in oversight and the current culture where insider protectionism controls over the facts, law, and citizens' access to justice. See Docket #45, p.12 - 40 in the reply which includes the article, "Foxes Guarding the Courthouse: The Perfect Storm for Judicial Accountability."
62. With all due respect to Judge Frayman and still requesting he provide clarification on the factual and legal basis for order, the Court's demeanor with plaintiff and the order appear to fall uniformly in line with what the article suggests about the pervasiveness and power of insider protectionism.
63. The facts and law, up to and including Florida Constitution require expedited action to address the 13th Circuit's public records violations, and Plaintiff pleads for relief in that regard.

V. Conclusion and request for disqualification absent compelling explanation or relief grounded in law and facts:

64. Plaintiff continues to plead with this Court for efficiency and a focus on the relevant facts and law, with the primary goal of finally resolving his family law case.
65. The core objectives of the Courts are truth and justice, neither of which can exist unless the laws apply to everyone, including judges and lawyers.
66. The Florida Constitution's mandate on transparency of judicial records is a safeguard against precisely the type of abuses that pervade the litigation across multiple related trial and appellate cases.
67. The precise issue before all of those courts is whether the system is more committed to truth and justice or protecting insiders from consequences.
68. Plaintiff pleads with the Court for vacating the current order and entry of an order consistent with that demanded in the amended petition for writ of mandamus (Docket #12) and the motion for immediate writ (Docket #37).
69. Absent some compelling justification based in fact and law, the levels of bias and open disdain for Plaintiff on the record and in the order require disqualification for institutional integrity and due process.

70. Disqualification is required when a party has a **"well-founded fear that the judge cannot act impartially or where there is evidence of bias."** (Florida Statute § 38.10 and Florida Rule of Judicial Administration 2.330, which allow a party to seek disqualification if they do not believe they can receive a "fair process").
71. As noted in *Berry v. Berry*, 765 So. 2d 855 (Fla. 5th DCA), it is of 'essential importance' that presiding judges remain free from bias and prejudice.
72. Here, the Court's actions—raising defenses not raised by defendants, sua sponte dismissal of claims without notice, and failing to require anything of defendants not already past due—create an objective, well-founded fear that Petitioner will not receive the fair process guaranteed by law
73. In light of Plaintiff's well-documented history and longstanding concerns over 13th Circuit misconduct, concealment of records, and uniform refusal of relevant judicial institutions to address the simple facts, Judge Frayman's immediate animosity towards Plaintiff raise precisely the same fears Plaintiff keeps finding despite going through proper judicial channels and leadership.

WHEREFORE, Plaintiff, Christopher Hanson, individually and as attorney/next friend for his minor children, respectfully requests that this Court:

- A. **VACATE** the portions of the January 13, 2026, Order/Alternative Writ of Mandamus that *sua sponte* dismissed Plaintiff's claims for "administrative records" and "declaratory relief" without notice or a hearing;
- B. **ENTER** an order consistent with the relief requested in the **Amended Petition (Docket #12)** and the **Motion for Immediate Writ (Docket #37)**, including an order compelling the immediate production of the April 4, 2025, hearing video and all records relating to the December 13, 2024, and January 9, 2025, hearings;
- C. **PROVIDE** clarification based in fact and law for the Court's *sua sponte* actions, its "inartful" characterization of Plaintiff's work, and the "procedural gifts" granted to the Defendants in light of the circumstances described herein;
- D. **GRANT DISQUALIFICATION** of Judge Frayman from these proceedings if, following the requested clarification and rehearing, Plaintiff remains unsatisfied with his ability to receive a fair and impartial process. Plaintiff asserts that the Court's actions to date—including raising unpled defenses and silencing the Plaintiff—have created an objective, "well-founded fear" that the Court cannot act with the impartiality required by **Florida Statute § 38.10, Rule 2.330**, and *Berry v. Berry*; and
- E. **GRANT** such other and further relief as this Court deems just and proper, including attorney's fees and costs as requested in the Amended Petition

Certification/Declaration:

I, Christopher Hanson, both as plaintiff and plaintiff's attorney, and as an officer of the Court, declare under penalty of perjury that the above is true and correct to the best of my knowledge.

Certified and executed on January 16, 2026.

/s/Christopher Hanson

Christopher Hanson

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Amended Verified Petition/Complaint for Writ of Mandamus, Declaratory Relief, and Attorney's Fees was filed through the Florida Courts E-Filing Portal with service via the Portal's e-service system on January 16, 2026.

/s/ Christopher Hanson

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